

SENATE No. 1482

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting patients and health care workers from exposure to surgical smoke.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/20/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>

SENATE No. 1482

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 1482) of Joanne M. Comerford, John F. Keenan and Michael D. Brady for legislation to protect patients and health care workers from exposure to surgical smoke. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1332 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting patients and health care workers from exposure to surgical smoke.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 244 the following section:-

3 Section 245. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:-

5 “Smoke evacuation system”, smoke evacuators, laser plume evacuators, or local exhaust
6 ventilators that effectively capture and neutralize surgical smoke at the site of origin and before
7 the smoke can make ocular contact or contact with the respiratory tract of the occupants of the
8 room.

9 “Surgical smoke”, the by-product, including surgical plume, smoke plume, bio-aerosols,
10 laser-generated airborne contaminants, and other lung-damaging dust, that results from contact
11 with tissue by an energy generating device.

12 (b) All hospitals and freestanding ambulatory surgical facilities licensed in the
13 commonwealth under this chapter shall adopt policies to ensure the elimination of surgical
14 smoke by use of a smoke evacuation system for any procedure that generates surgical smoke
15 from the use of energy-based devices including, but not limited to, electrosurgery and lasers.

16 (c) Any hospital or freestanding ambulatory surgical facility that violates subsection (b)
17 shall be punished by a fine of not less than \$500 for each violation.

18 SECTION 2. (a) Section 245 of chapter 111 of the General Laws shall take effect as of
19 January 1, 2026.

20 (b) Every hospital and freestanding ambulatory surgical center shall report to the
21 department of public health by April 1, 2026 regarding the policies they have adopted to comply
22 with said section 245 of said chapter 111.